

AMENDMENT TO CITY CONTRACT NO. 7155
SPONSORSHIP AGREEMENT BETWEEN THE CITY OF CHEYENNE
AND SPRADLEY BARR TOYOTA

This agreement amends City Contract No. 7155, dated March 25, 2020, between the City of Cheyenne, Wyoming, and Spradley Barr Toyota, to replace the current language in paragraph 5, Events, with the following language:

5. **Events.**

A. As a 2020-2021 Platinum Venue Sponsor to assist in purchasing a film projector, in exchange for Thirty-Five Thousand Dollars (\$35,000.00) of sponsorship revenue to the City of Cheyenne, Spradley Barr Toyota will receive:

- Promotional vendor space at all 2020-2021 film series shows (i.e., one car outside of Civic Center) two hours prior to the show and removed following the show.
- Four Facebook posts, two organic and two sponsored.
- Logo recognition on one indoor banner.
- Logo recognition on one exterior venue banner.
- Promotional material may be distributed to film series attendees (i.e., flyer, keychain, etc.). Promotional material must be provided by the sponsor to the Cheyenne Civic Center marketing team one week prior to showing.
- Logo recognition in out-of-town marketing endeavors. (E-mail blasts to out of town/state patrons. E-blasts are distributed to approx. 30,000 people.)
- Four comp tickets per film series show.
- Pre-recorded announcement before each show. Sponsor will be recognized by name in the pre-show overhead announcement.
- Sponsor commercial to be played before each film and in the lobby. Assets must be provided by the sponsor to the Cheyenne Civic Center marketing team one week prior to showing.

All other terms and conditions of the existing agreement shall remain unchanged and in full force and effect.

This agreement will become effective upon execution by the parties following Governing Body approval.

Dated this _____ day of _____, 2020.

CITY OF CHEYENNE, WYOMING

By:

Marian J. Orr, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

SPRADLEY BARR TOYOTA

By:

Robert Womack, President


**CHEYENNE
EVENTS**

 Approved as to
form only:

amf

 Date: 2/19/20
CITY CONTRACT #7155

**2020-2021 SPONSORSHIP AGREEMENT
BETWEEN THE CITY OF CHEYENNE AND SPRADLEY BARR TOYOTA**

1. **Parties.** The parties to this Agreement are the City of Cheyenne, a municipal corporation organized and existing under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Spradley Barr Toyota, 2300 Westland Road, Cheyenne, Wyoming 82001 ("Spradley Barr").
2. **Purpose of the Agreement.** The purpose of this Agreement is to outline the responsibilities and terms for a Sponsorship Agreement between the parties, and more specifically, between Spradley Barr and the City.
3. **Term.** The term of this Agreement will be from the date of the last signature affixed until said shows are completed.
4. **Payment.** City will provide Spradley Barr an invoice to process payment directly to the vendor. Spradley Barr agrees to pay the City the amount of Thirty-Five Thousand Dollars (\$35,000.00) pursuant to the terms of this Agreement.
5. **Events.**

A. As a Platinum Sponsor of the 2020-2021 Broadway Series, in exchange for Ten Thousand Dollars (\$10,000.00) of sponsorship revenue to the City, Spradley Barr will receive:

Recognition by having a promotional vendor space at the 2020-2021 Broadway Series shows (i.e., one car outside of Civic Center two hours prior to the show and removed following the show), print marketing in Broadway Series Brochures, social media, City-wide banners, out-of-town marketing, and radio announcements.

Shows are:

- i) Chicago, the Musical - October 6, 2020
- ii) Charlie and the Chocolate Factory - December 6, 2020
- iii) South Pacific – February 5, 2021
- iv) Simon & Garfunkel Story – (Offer sent - February 2021)
- v) Fiddler on the Roof – (Offer sent - May 2020)

B. As the Family Film Series Presenting Sponsor, in exchange for Five Thousand Dollars (\$5,000.00) as sponsorship revenue to the City, Spradley Barr will receive:

Recognition by having a promotional vendor space at the 2020-2021 Family Film Series (i.e., one car outside of Civic Center, or booth space in the lobby two hours prior to the show and removed following the show), print marketing, social media, and radio announcements.

Shows will include two summer films, a Halloween film, a Christmas film, and a Spring Break film. This film series will begin Summer 2020.

C. As the Exclusive Sponsor of the Superday 2020 Kid Zone, in exchange for Fifteen Thousand Dollars (\$15,000.00) as sponsorship revenue to the City, Spradley Barr will receive:

Recognition on all Superday print marketing, social media, city-wide banners, out-of-town marketing, display of vehicles in front of Kid Zone, stage announcements, and radio announcements.

The sponsorship of the Superday 2020 Kid Zone will allow all city youth to enjoy all inflatables for free during Superday.

D. As an Art Access Sponsor, in exchange for Five Thousand Dollars (\$5,000.00) as sponsorship revenue to the City, Spradley Barr will receive:

Recognition as a Civic Center Art Access Sponsor in the Lobby, acknowledgement at grant presentations and at Art Access Annual Fundraiser, and on the Annual Report.

The Art Access Program provides free ticket vouchers to youth, families, seniors and non-profits to have access to Cheyenne Civic Center shows and events.

6. General Provisions.

A. Amendments. Any changes, modifications, revisions or amendments to this Agreement, which are mutually agreed upon by the parties, will be incorporated by writing.

B. Applicable Law. The construction, interpretation and enforcement of this Agreement is governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

C. **Compliance with Laws.** Spradley Barr and the City of Cheyenne agree to keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.

D. **Notice.** All notices arising out of or from the provisions of this Agreement shall be in writing and given to the parties either by regular mail or delivery in person.

E. **Termination.** Either party may terminate this Agreement for cause without liability in the event either party fails to perform.

F. **Invoices.** Invoices must show Denver Region Toyota Dealers Association or DRTDA as the billed to customer and be addressed to: DRTDA, 4401 S. Quebec Street, Suite 200, Denver, Colorado 80237.

G. **Reporting.** City will provide Spradley Barr an estimated media value (paid and in-kind) and list of elements the vendor is spending/using to promote the event.

H. **Entirety of Agreement.** This Agreement represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

Spradley Barr Toyota

3-26-2020
Date

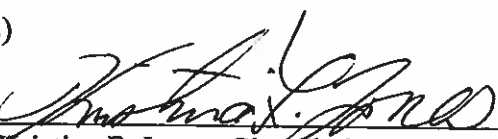

Robert Womack, President

City of Cheyenne

03-25-2020
Date


Marian J. Orr, Mayor

(SEAL)

Attest: 
Kristina F. Jones, City Clerk